

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 23-001

**Amendments to Title 5, Chapter 2 Section 5-204.10 of the Chickasaw Nation Code
(Publication Service Upon Parties)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously established rules and procedures for the Chickasaw District Court, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend those rules and procedures.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5, Chapter 2, Section 5-204.10 of the Chickasaw Nation Code, all other Sections to remain the same (additions are shown in red, deletions are stricken through):

“SECTION 5-204.10

**PUBLICATION SERVICE UPON PARTIES AND
THE UNKNOWN HEIRS AND SUCCESSORS OF
NAMED PARTIES.**

A. In a civil matter, service of summons upon named parties or to the unknown heirs and successors of the named party or parties may be made by publication as provided above when any person named as a party in interest cannot be found.

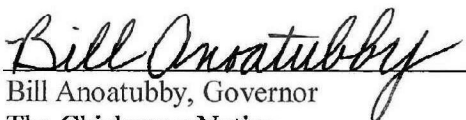
B. Service pursuant to this Section, after filing of the affidavit required by Section 5-204.9 and being granted an order approving notice by publication by the Judge, shall be made by publication of a notice, signed by the Court Clerk, one (1) day a week for three (3) consecutive weeks in a newspaper authorized by law to publish legal notices which is published in the county ~~where the petition is filed and once in the Chickasaw Times~~ of the known party's last address. If a last known address cannot be obtained through due diligence as provided in Section 5-204.9, or service is to be made upon the unknown heirs and successors of a named party, the publication shall be made in the county where the Petition is filed. If no newspaper authorized by law to publish legal notices is published in such county, the notice shall be published in some such newspaper of general circulation which is published in an adjoining county. All named parties and their unknown heirs and successors who may be served by publication may be included in one notice. The notice shall state the name of the Court and the names of the plaintiff and the

parties served by publication, and shall designate the parties whose unknown heirs and successors are being served. The notice shall also state that the named defendants and their unknown heirs and successors have been sued and must answer the petition on or before a time to be stated (which shall not be less than forty one (41) days from the date of the first publication), or judgment, the nature of which shall be stated, will be rendered accordingly. If jurisdiction of the Court is based on property, any real property subject to the jurisdiction of the Court and any property or debts to be attached or garnished must be described in the notice."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on November 18, 2005, by a vote of 13 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: NOV 18 2005

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(Publication Service Upon Parties)

Explanation: This resolution amends Section 5-204.10 of the Chickasaw Nation Code pertaining to service by publication to named parties and unnamed successors of named parties. The amendments modify the required places of publication.

Requested By: Tim Colbert, Chairman
Court development Ad Hoc Committee

Presented By: Tim Colbert, Chairman
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